

Based on the current record, the Court concludes that it lacks subject matter jurisdiction because the case is not ripe for adjudication.

Minnesota's lawsuit necessarily rests on the argument that Governor Abbott has violated the Extradition Clause, the Extradition Act, or the UCEA by having failed to sign a rendition warrant by now. Minnesota cannot premise its causes of action on the allegation that Governor Abbott *may* violate those authorities in the future; it must prove that a violation has already occurred. Otherwise, Minnesota would be impermissibly seeking relief based solely on a premature or speculative allegation about possible future events—i.e., that Governor Abbott will wrongfully deny the request for extradition.

The record before the Court, however, reveals that Governor Abbott has not denied the request for a rendition warrant. Minnesota alleges that Governor Abbott has “refused to sign” and has “with[eld]” the rendition warrant. But the record reflects only that Governor Abbott has neither agreed nor refused to sign the rendition warrant as to Castro. Instead, Governor Abbott has requested that the Texas Secretary of State “investigate [Minnesota's] demand and report to [the Governor] concerning Mr. Castro's situation and circumstances and whether he ought to be surrendered.” (Letter from Greg Abbott, Governor of Texas, to Robert Howden, Secretary of State (July 31, 2026), *available at* Legislative Reference Library of Texas, <https://tinyurl.com/mannweac>). The UCEA expressly authorizes Governor Abbott to take this step, *see* TEX. CODE CRIM. P. art. 51.13 § 4, and the Secretary of State has not yet reported back regarding the investigation. As a result, Governor Abbott has not determined whether to sign the rendition warrant.

Minnesota's position would succeed only if the Extradition Clause, Extradition Act, or UCEA required Texas to act on the request for a rendition warrant within a specified time period that has already elapsed. Under those circumstances, Governor Abbott's failure to act within the time period would amount to a violation of the constitutional and statutory authorities and would